



CHAPTER 56.

An Act to provide for the payment of compensation or disablement benefit in the case of male workmen who have died from, or become totally and permanently incapacitated for work as the result of, the respiratory disease known as byssinosis; and for purposes connected with the matters aforesaid. [20th November 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Secretary of State may by scheme (in this Act referred to as a "compensation scheme") provide for the payment of compensation and supplementary allowances, in accordance with the scales prescribed by the Workmen's Compensation Acts, 1925 to 1940, by employers of male workmen who are certified in such manner as may be prescribed by the scheme to have been employed for periods amounting in the aggregate to not less than twenty years in cotton card rooms or other specified parts of factories engaged in the spinning of raw cotton, and to have died from, or become totally and permanently incapacitated for work as the result of, the respiratory disease known as byssinosis.

Compensation scheme for workmen in cotton industry suffering from byssinosis.

CH. 56. *Workmen's Compensation 3 & 4 GEO. 6.
and Benefit (Byssinosis) Act, 1940.*

(2) Provision may be made by a compensation scheme—

- (a) for setting up an administrative board representative of both employers and workmen, with an independent chairman, to administer the scheme and to settle claims and other matters arising thereunder, and for the duties, powers and procedure of that board;
- (b) for the appointment and remuneration of a medical board and for its duties and powers in connection with the scheme;
- (c) for the establishment of an expenses fund to be administered by the administrative board or otherwise as may be provided by the scheme;
- (d) for requiring to be paid into the said fund by or on behalf of employers and workmen such fees in respect of the exercise by either of the said boards of their functions under the scheme as may be prescribed by regulations made by the Secretary of State, and for the recovery of such payments; and for the payment and recovery out of the said fund of the remuneration of the medical board and of such expenses incurred by either of the said boards for the purposes of the scheme (including the remuneration of officers of the administrative board), or by workmen submitting themselves for examination by the medical board, as may be directed by the scheme to be so paid;
- (e) for requiring the payment to an employer from whom compensation is recoverable in respect of the death or incapacity of any workman of contributions by such other employers of that workman in any employment to which the scheme relates as may be prescribed by the scheme; and
- (f) for the application, with such adaptations and modifications as may be necessary or expedient, of any of the provisions of the Workmen's Compensation Acts, 1925 to 1940, or of any enactment relating to compensation thereunder, and generally for such further or supplemental matters as appear necessary for giving full effect to the scheme.

2.—(1) For the purpose of making provision for cases where the workman has not been employed after the date on which the first compensation scheme comes into operation in employment to which the scheme relates, the Secretary of State may by scheme (in this Act referred to as a "benefit scheme") provide for the payment of disablement benefit out of a fund established under the scheme in the case of male workmen who are certified in such manner as may be prescribed by the scheme to have been employed before the said date for periods amounting in the aggregate to not less than twenty years in cotton card rooms or other specified parts of factories engaged in the spinning of raw cotton, and to have become totally and permanently incapacitated for work as the result of byssinosis; and any such benefit shall be at a rate prescribed by the scheme and shall be in addition to any benefits payable under the National Health Insurance Acts, 1936 to 1939.

Benefit scheme for workmen formerly employed in cotton industry and suffering from byssinosis.

(2) Provision may be made by a benefit scheme—

- (a) for setting up an administrative board representative of both employers and workmen, with an independent chairman, to administer the scheme and to settle claims and other matters arising thereunder, and for the duties, powers and procedure of that board;
- (b) for the appointment and remuneration of a medical board and for its duties and powers in connection with the scheme;
- (c) for the administration of the benefit fund by the administrative board or otherwise as may be provided by the scheme;
- (d) for requiring such annual or other payments as may be prescribed by the administrative board with the approval of the Secretary of State to be made into the said fund by occupiers of factories engaged in the spinning of raw cotton, for requiring security to be given for the making of those payments in such cases and in such manner as may be so prescribed, and for the recovery of those payments; and for the payment and recovery out of the said fund of benefits payable under the

scheme, of the remuneration of the medical board and of such expenses incurred by either of the said boards for the purposes of the scheme (including the remuneration of officers of the administrative board) or by workmen submitting themselves for examination by the medical board as may be directed by the scheme to be so paid;

- (e) for empowering the administrative board within six months of the coming into operation of the first benefit scheme to borrow for the purposes thereof such sums not exceeding in the aggregate one thousand pounds as may be approved by the Secretary of State on such terms as to the giving of security, rate of interest, repayment or otherwise as may be so approved;
- (f) for requiring occupiers of factories engaged in the spinning of raw cotton to keep such records, and to provide the administrative board with such information and facilities for inspection, as may be prescribed by the scheme, and for the recovery on summary conviction of monetary penalties, not exceeding five pounds for every day on which the default occurs or continues, in respect of any failure to comply with any such requirement;
- (g) for winding up the benefit fund and for the distribution of any balance standing to the credit thereof among such occupiers as aforesaid, when in the opinion of the Secretary of State the fund is no longer required for the purpose for which it was established; and
- (h) generally for such further or supplemental matters as appear necessary for giving full effect to the scheme.

Power to
vary
schemes
and pro-
cedure for
making
schemes.

3.—(1) A scheme made under this Act may be extended or varied by any subsequent scheme so made, but any scheme made under this Act shall be laid before each House of Parliament forthwith, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House sits after any such scheme is laid before

it praying that the scheme may be annulled, His Majesty in Council may annul the scheme and it shall thenceforward be void, but without prejudice to the validity of anything done thereunder.

(2) Section one of the Rules Publication Act, 1893, 56 & 57 Vict. shall not apply to any scheme made under this Act. c. 66.

4.—(1) This Act may be cited as the Workmen's Compensation and Benefit (Byssinosis) Act, 1940, and so much of this Act as relates to compensation shall be included among the enactments which may be cited together as the Workmen's Compensation Acts, 1925 to 1940. Citation and extent.

(2) This Act shall not extend to Northern Ireland.

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